

		Further, there is no civil remedy for false testimony, outside of a motion for new trial in the original action, and/or appeal of the original judgment. (<i>Kachig v. Boothe</i> (1971) 22 Cal.App.3d 626, 633 [“The trial is his opportunity for making the truth appear ... [i]f, unfortunately, he fails, being overborne, by perjured testimony, and if he likewise fails to show the injustice that has been done him, on motion for a new trial, and the judgment is affirmed on appeal, he is without remedy”]; <i>Kachig v. Boothe</i> (1971) 22 Cal.App.3d 626, 633, emphasis added; see also <i>Jacob B. v. County of Shasta</i> (2007) 40 Cal.4th 948, 955–956 [Civ. Code, § 47, subd. (b) litigation privilege “is absolute and applies regardless of malice ... Indeed, the privilege extends even to civil actions based on perjury”]; <i>Cedars-Sinai Medical Center v. Superior Court</i> (1998) 18 Cal.4th 1, 9 [“we have held that there is no civil remedy in damages against a witness who commits perjury when testifying”].) Moving party also argues that plaintiff’s current claims are barred by res judicata. However, this does not appear on the face of the FAC, and raises arguments outside the FAC without any request for judicial notice, which is improper on demurrer. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318 [demurrer lies only to challenge defects appearing on the face of the pleading, or from matters outside the pleading of which judicial notice has been properly requested].) Plaintiff is granted 20 days to file a Second Amended Complaint, which shall address any previously pled claims, together with any necessary allegations showing delayed discovery, in the same pleading. (See Code Civ. Proc., § 471.5, subd. (a) [“If the complaint is amended ... the court may, in its discretion, require the complaint as amended to be filed”]; Cal. Rules of Court, rule 3.1324, subd. (c) [“The court may ... require the filing of the entire previous pleading with the approved amendments incorporated into it”].) Case Management Conference continued to February 26, 2027 at 8:30 a.m. Moving party shall give notice.
6	Maaranu vs. Ponder 2025-01505635	Demurrer to Amended Complaint (2) <i>Vacated. See minute order dated 9/8/26.</i>